

KARNATAKA ACT No. 19 OF 1980
THE REGISTRATION (KARNATAKA AMENDMENT)
ACT, 1980

ARRANGEMENT OF SECTIONS

Sections :

1. Short title and commencement
2. Insertion of new section 80A

KARNATAKA ACT No. 19 OF 1980

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THE REGISTRATION (KARNATAKA AMENDMENT)
ACT, 1980

*(Received the assent of the President on the
Eighth day of June, 1980)*

An Act further to amend the Registration Act, 1908 in its application to the State of Karnataka.

Whereas it is expedient further to amend the Registration Act, 1908 (Central Act 25 of 1908), for the purposes hereinafter appearing ;

Be it enacted by the Karnataka State Legislature in the Thirtyfirst Year of the Republic of India as follows :—

1. *Short title and commencement.*—(1) This Act may be called the Registration (Karnataka Amendment) Act, 1980.

(2) It shall come into force at once.

2. *Insertion of new section 80-A.*—After section 80 of the Registration Act, 1908 (Central Act 25 of 1908), the following section shall be and shall be deemed to have been inserted with effect from the first day of April, 1972, namely :—

“ 80A. *Recovery of registration fee not levied or short levied, etc.*—(1) If on inspection or otherwise, it is found that the fee payable under this Act in relation to any document which is registered has not been paid or has been insufficiently paid, such fee may, on a certificate of the Inspector-General of Registration, be recovered from the person who presented such document for registration, as an arrear of land revenue. The certificate of the Inspector-General shall be final and shall not be called in question in any court or before any authority :

Provided that no such certificate shall be granted without giving such person,—

- (i) an opportunity of being heard ; and
- (ii) an opportunity to pay the amount of fee found due from him.

(2) If on inspection or otherwise the Inspector-General of Registration finds that the amount of fees charged and paid under the provisions of this Act is in excess of that which is legally chargeable, he may, upon an application in writing or otherwise, refund the excess fee so charged and paid.

(3) Nothing in sub-sections (1) and (2) shall apply to instruments executed prior to first day of April 1972”.